

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION APPROVING WATER AND SANITARY SEWER SERVICES, BY OUTSIDE USER WATER AND SANITARY SEWER SERVICES AGREEMENTS, FOR DEAN BYRNE, FOR LOT 3, ENERGY PARK ONE, SITUATED IN THE NE¼ OF SECTION 33, TOWNSHIP 13 NORTH, RANGE 67 WEST, OF THE 6TH P.M., LARAMIE COUNTY, WYOMING.”

WHEREAS, Dean Byrne (Byrne) is the owner of the property in Cheyenne, Wyoming, more specifically described as:

Lot 3, Energy Park One, according to the official plat filed for record on January 20, 2012 in Book 9, Page 173, Records of Laramie County, Wyoming, situated in a portion of the NE¼ of Section 33, Township 13 North, Range 67 West, of the 6th P.M., Laramie County, Wyoming; and

WHEREAS, Byrne submitted application to the Board of Public Utilities (“BOPU”) for water and sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties; and

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne; and

WHEREAS, BOPU has reviewed and approved the application submitted by Byrne, and BOPU and Byrne will execute Outside User Water and Sanitary Sewer Services Agreements upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the applications for water and sanitary sewer services submitted by Byrne and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the application submitted by Byrne to BOPU for water and sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property described as Lot 3, Energy Park One, according to the official plat filed for record on January 20, 2012 in Book 9, Page 173, Records of Laramie County, Wyoming, situated in a portion of the NE¼ of Section 33, Township 13 North, Range 67 West, of the 6th P.M., Laramie County, Wyoming, is hereby approved.

BE IT FURTHER RESOLVED, that BOPU and Byrne are authorized to execute Outside User Water and Sanitary Sewer Services Agreements.

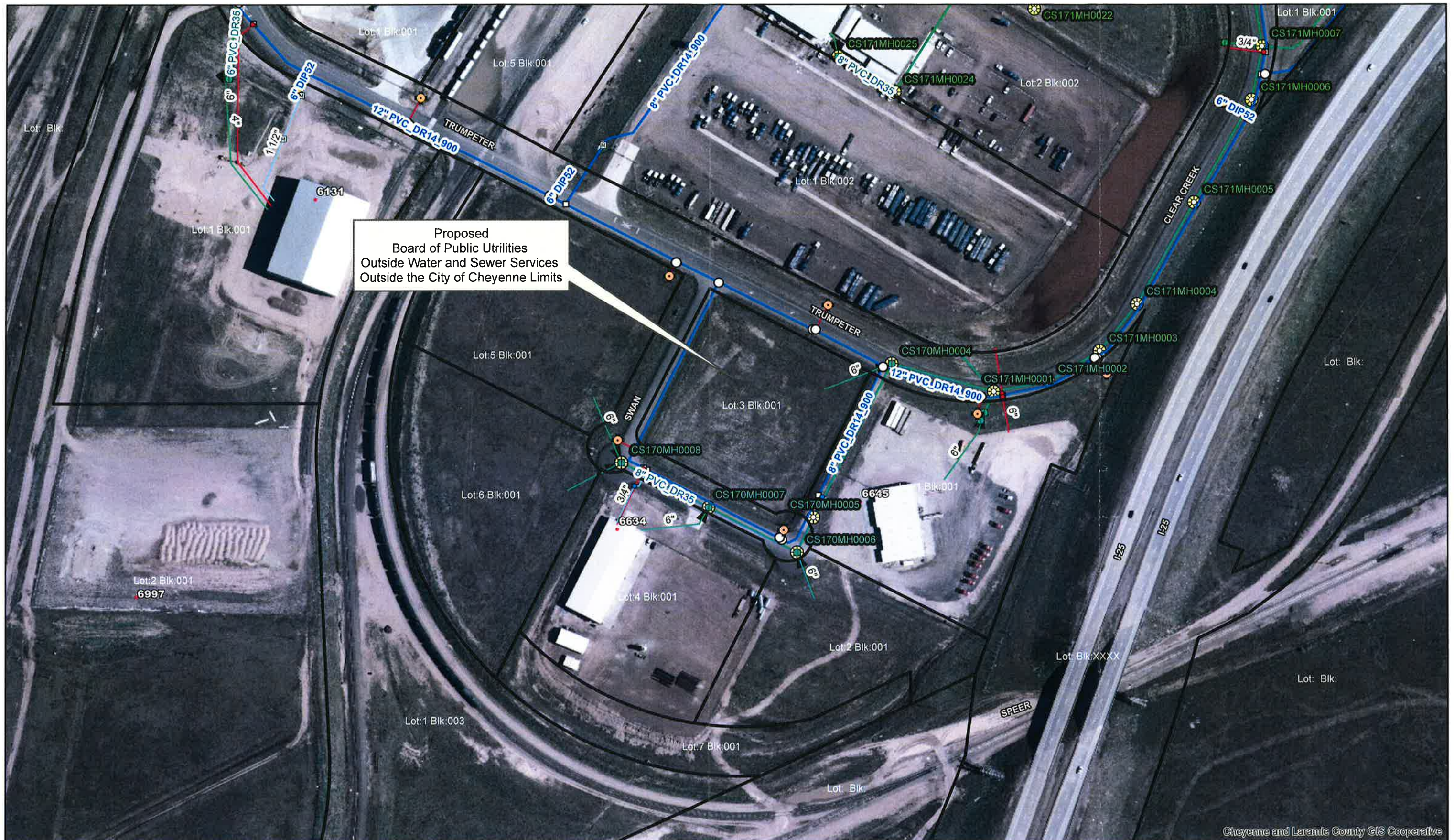
PRESENTED, READ, AND ADOPTED this _____ day of _____, 2022.

Patrick Collins, Mayor

(SEAL)

ATTEST:

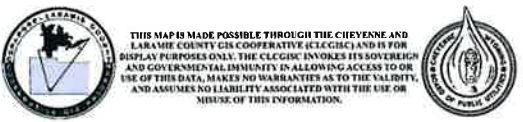
Kristina F. Jones, City Clerk



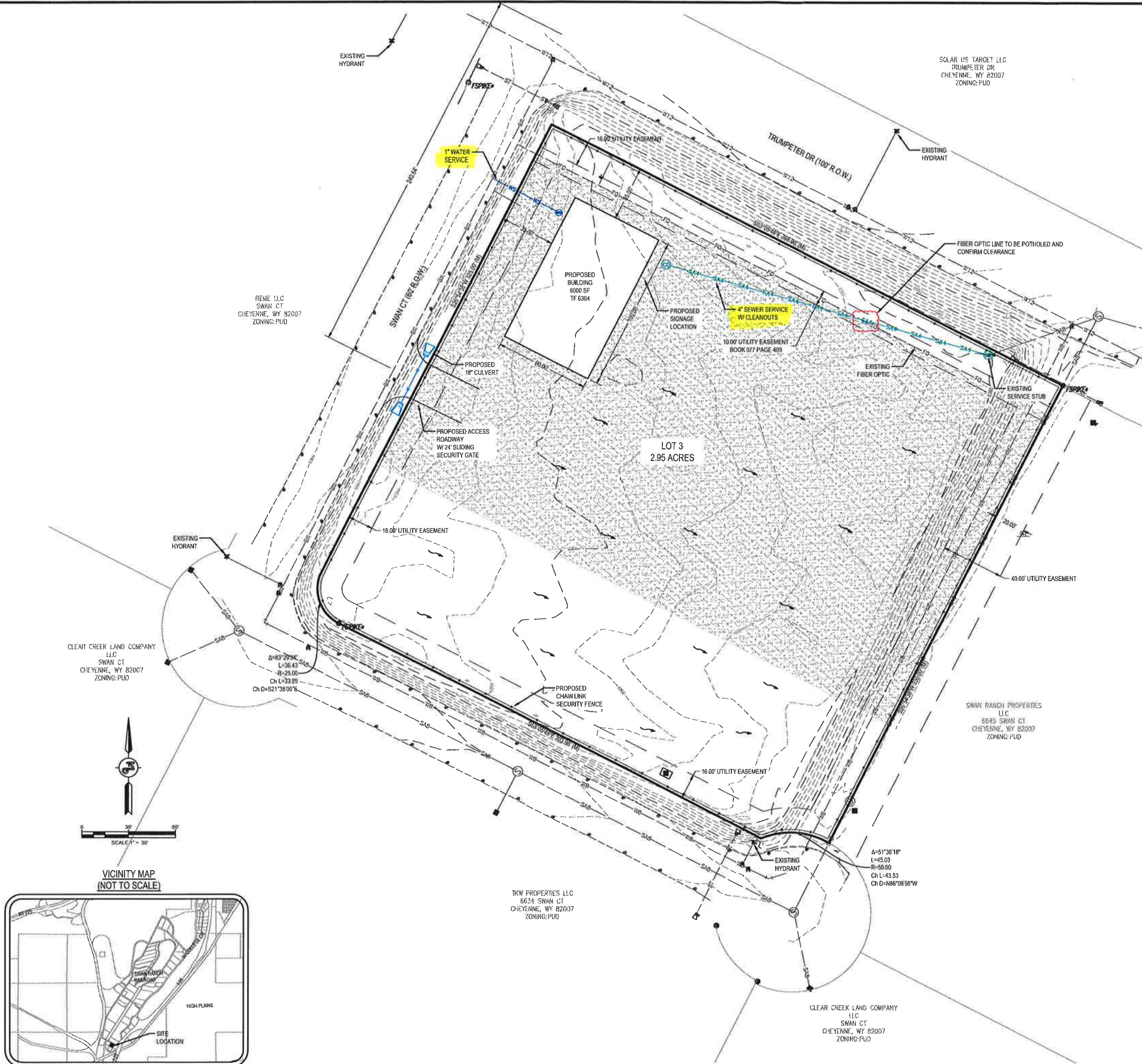
Coordinate System: NAD 1983 StatePlane Wyoming East FIPS 4901 Feet
 Projection: Transverse Mercator
 Datum: North American 1983
 False Easting: 656,166.6667
 False Northing: 0.0000
 Central Meridian: -105.1667
 Scale Factor: 0.9999
 Latitude Of Origin: 40.5000
 Units: Foot US



Board of Public Utilities Water and Sewer Mains



\\c:\6414\Byrne Energy Park\DWG\1616 PREL.DWG Jul 02, 2021 9:55am dkh



COMPUTATION TABLE

TOTAL PROJECT AREA = 2.95 ACRES
BUILDING AREA = 6,000 SF
TOTAL PROJECT GRAVEL AREA = 1.85 ACRES (63% OF PROJECT AREA)
AREA TO REMAIN NATIVE OR BE RESEED WITH NATIVE GRASSES = 1.1 ACRES

CURRENT ZONING - PUD

PROPOSED USE - TOW TRUCK SERVICE

NOTES:

- 1) LANDSCAPING PLAN TO BE SUBMITTED SEPARATELY
- 2) CONTRACTOR RESPONSIBLE FOR ENSURING THE STORMWATER FROM THE SITE IS ENTIRELY CONVEYED TO THE STORM WATER SYSTEM AND CAPTURED BEFORE LEAVING THE SITE.
- 3) A SIGNAGE PLAN WILL BE INCLUDED IN THE CONSTRUCTION DRAWINGS.
- 4) PROPOSED EXTERIOR LIGHTING INCLUDES LED WALL PACKS ON BUILDING.

LEGEND

- PROPOSED CRUSHED BASE
- EXISTING MAJOR CONTOUR
- EXISTING MINOR CONTOUR
- PROPOSED SANITARY SERVICE
- PROPOSED SANITARY CLEANOUT
- EXISTING SANITARY MAIN
- EXISTING SANITARY MANHOLE
- PROPOSED WATER SERVICE
- EXISTING WATER MAIN
- EXISTING FIRE HYDRANT
- EXISTING WATER VALVE
- PROPOSED DRAINAGE ARROW
- PROPOSED CULVERT, FLARED END SECTIONS
- PROPOSED CHAIN LINK SECURITY FENCE

CLEAR CREEK LAND COMPANY
LLC
SWAN CT
CHEYENNE, WY 82007
ZONING: PUD

RENE LLC
SWAN CT
CHEYENNE, WY 82007
ZONING: PUD

TRW PROPERTIES LLC
6634 SWAN CT
CHEYENNE, WY 82007
ZONING: PUD

SOLAR US TARGET LLC
TRUMPETER DR
CHEYENNE, WY 82007
ZONING: PUD

SWAN RANCH PROPERTIES
LLC
6645 SWAN CT
CHEYENNE, WY 82007
ZONING: PUD

CLEAR CREEK LAND COMPANY
LLC
SWAN CT
CHEYENNE, WY 82007
ZONING: PUD

SITE PLAN
FOR
BYRNE ENERGY PARK
LOT 3, BLOCK 1 ENERGY PARK ONE
BEING SITUATED IN A PORTION OF THE NORTHEAST 1/4
SECTION 33, TOWNSHIP 13 NORTH, RANGE 67 WEST OF
THE SIXTH PRINCIPAL MERIDIAN, CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.
PREPARED JUNE 2021

NO.	REVISION	DATE

PREPARED FOR:
DDV LLC
6143 TUNDRA DRIVE
CHEYENNE, WY 82007
307-996-7579

PROJECT:
BYRNE ENERGY PARK
DRAWING TITLE:
SITE PLAN

avi ENGINEERING
PLANNING
SURVEYING
INC.
237.631.6317
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AV@AVPC.COM

DATE: Jul 02, 2021
DRAWN BY: CK
DESIGNED BY: CK
CHECKED BY: BP

JOB NO.: 4516

DRAWING NO. 1 OF

**OUTSIDE USER WATER/SEWER
SERVICES AGREEMENT**

Approved as to
form only:

[Signature]
Date: 10/13/21

This agreement made this _____ day of _____, 20____ between the City of Cheyenne, hereinafter referred to as the "CITY," a municipal corporation organized pursuant to the laws of the State of Wyoming, acting by and through its Board of Public Utilities, hereinafter referred to as the "BOPU," and Dean Byrne, hereinafter referred to as the "USER(S)."

WITNESSETH:

WHEREAS, the USER is the current owner of and is desirous of connecting the property described as follows to CITY water and sanitary sewer system:

Lot 3, Energy Park One, according to the official plat filed for record on January 20, 2012 in
Book 9, Page 173, Records of Laramie County, Wyoming
Being situated in a portion of the
NE ¼ Section 33, T13N, R67W. of the 6th. P.M., Laramie County, Wyoming

; and

WHEREAS, the BOPU has exclusive control of all CITY owned waterworks and sanitary sewer systems and operates the same for the CITY and may furnish surplus water and sanitary sewer facilities to persons outside the CITY pursuant to WYO. STAT. § 15-7-404 (a) (1977) and Title 13 of the Cheyenne City Code.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, the parties agree as follows:

1. The BOPU shall allow the USER(S) to connect the above-referenced property to the existing BOPU water distribution system and sanitary sewer system at points determined by the BOPU.
2. The BOPU shall provide all necessary inspections for the construction and installation of the service line connections. The USER(S) shall provide the BOPU with a certificate of compliance, signed in affidavit form by a contractor licensed in the CITY, verifying that all construction materials and trade installation of service lines, service line fittings, and termination points at or in USER(S) dwellings and at the location of the USER(S) dwellings and at the location of the USER(S) water meter are in accordance with applicable provisions of federal, state and local codes, laws, and/or ordinances. Specific codes in effect include BOPU'S standards, International Plumbing Codes and International Mechanical Codes. Specific reference shall be given stating that 1) there are no taps off of the service line between the water meter and the water main; 2) that a BOPU water meter has been installed; 3) a backflow prevention device has been installed; and (4) that the service lines are only servicing one building. Inspection fees to be paid by the USER(S) shall compensate the BOPU at 1.5 times the then current inspection fee charged to in-CITY users. The cost of the water meters installed will be paid for by the BOPU, not the users.
3. The USER(S) shall retain ownership of all improvements from the point of tapping into the water and sewer mains and shall be responsible for the maintenance, repair and upkeep thereof. The BOPU shall retain ownership of the water meter and shall be responsible for the maintenance, repair and upkeep thereof.
4. The USER(S) shall comply with all applicable federal, state and local laws, rules, regulations and ordinances governing sanitary sewer systems including but not limited to the applicable chapters of Cheyenne City Code Title 13. The USER(S) shall comply with all technical codes applicable to in-CITY construction which use or connect to the sewer mains including the BOPU standards, International Plumbing Codes and International Mechanical Codes.
5. The USER(S) shall pay 1.5 times the BOPU water and sewer rates presently in effect

for in-CITY users and shall be subject to all subsequent changes thereof. The USER(S) shall pay 1.5 times the BOPU water and sewer tap fees, system development fees and all other applicable rates and fees. In the event the BOPU negotiates a different water and/or sewer rate with a similarly situated user, the BOPU and USER(S) agree to adjust the water and/or sewer rates in a manner consistent with that negotiated with the similarly situated user. In the event the BOPU negotiates a water and/or sewer agreement with a district hereinafter created, the BOPU and USER(S) agree to adjust the water and/or sewer rates in a manner consistent with the water and/or sewer rates charged to the customers in said district by the water and/or sewer district. If annexation to the CITY takes place, the water and sewer rate and tap fees and other such charges will be not more than those charged to all other CITY users.

6. The USER(S) hereby consents to the annexation of the above-referenced property in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. § 15-1-402 and Cheyenne City Code Chapter 1.16 as the same may be hereafter amended and, by warranty deed covenants, will require future USER(S) to consent to the terms and conditions of this agreement including the annexation of the above-referenced property which utilizes the water and sewer mains in the event said property qualifies for annexation to the CITY in accordance with WYO. STAT. 15-1-402 and Cheyenne City Code Chapter 1.16 as the same may be hereafter amended.

7. No drilling of water wells will be allowed within said property and no water wells shall be connected to the BOPU water system so long as water service is furnished by the BOPU or its successors. No septic systems will be allowed within said property so long as sanitary sewer service is furnished by the BOPU or its successors.

8. The USER(S) shall include the affirmative covenant attached hereto as Exhibit A and made a part hereof by this reference, with appropriate book and page numbers from the filing of this agreement with the Laramie County Clerk of Deeds, in all deeds from USER(S) conveying property included in the above-referenced property and hereby assign an equal right to the CITY to enforce the same.

9. The BOPU reserves the right to increase said water and sewer rate (to 2.0 times the in-CITY rate or the maximum allowed by law) to any property or lot within the above-referenced property not annexed to the CITY if said property or lot qualifies for annexation to the CITY and the CITY requests such annexation.

10. The BOPU and CITY reserve all governmental/sovereign immunities as provided by law. The USER(S) shall indemnify and hold harmless the BOPU and CITY, their officers, agents, employees and representatives from any claim or liability arising out of the failure to comply with the terms and conditions of this agreement or from any other action regarding the construction of said water distribution and sanitary sewer systems.

11. If a provision, section, subsection, sentence, clause or phrase of this agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of the agreement, which shall continue in full force and effect.

12. The terms and conditions contained herein shall be a covenant running with the land and shall extend to and be binding upon the USER(S), their heirs, devisees, personal representatives, successors and assigns.

13. This agreement contains all the agreements of the representations between the parties. None of the terms of this agreement shall be waived or modified to any extent, except by written instrument signed and delivered by both parties.

THE REMAINDER OF PAGE INTENTIONALLY LEFT BLANK

IN WITNESS WHEREOF, the parties hereto have executed this agreement on the date first above written.

BOARD OF PUBLIC UTILITIES
CITY OF CHEYENNE, WYOMING

By: _____
Bradley A. Brooks,
Director of the Board of Public Utilities
Of the City of Cheyenne, Wyoming

STATE OF WYOMING)
) ss
COUNTY OF LARAMIE)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared Bradley A. Brooks, with whom I am personally acquainted, and who, upon oath, acknowledged that he is the Director of Board of Public Utilities of the City of Cheyenne, Wyoming, and that he executed the foregoing instrument for the purposes therein contained, by signing his name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this _____ day of _____, 20__.

Notary Public

My commission expires: _____

User: Dean Byrne

By: _____
Signature

Print Name and Title

STATE OF)
) ss
COUNTY OF)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared Dean Byrne, with whom I am personally acquainted, and who, upon oath, acknowledged that he is the _____ of _____, and that he executed the foregoing instrument for the purposes therein contained, by signing his name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this _____ day of _____, 20__.

Notary Public

My commission expires: _____

EXHIBIT "A"

COVENANT

The above conveyance is expressly made subject to the terms and conditions of the USER WATER & SANITARY SEWER SERVICES AGREEMENT recorded in book_____ and pages_____ with the Laramie County Clerk of Deeds, such terms and conditions to be binding upon and to be observed by the Grantee(s) herein and (his, her, their) heirs, executors, administrators and assigns, and to run with and bind the land in favor of and to be enforceable by the Grantor and their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming. In the event of a violation or non-observance of the terms and conditions of said USER WATER & SANITARY SEWER SERVICES AGREEMENT, the Grantor, their legal representatives, heirs, successors and assigns including the City of Cheyenne, Wyoming, shall have the right to enforce the same including but not limited to granting consent to the annexation on behalf of the Grantee(s); and no act or admission upon the part of any of the beneficiaries of this clause shall be a waiver of the operation or enforcement of such condition.



File No.: 4521-3729802 (km)

WARRANTY DEED

FIRST AMERICAN

Clear Creek Land Company LLC, a Wyoming Limited Liability Company, grantor(s) of **Laramie** County, State of **WY**, for and in consideration of Ten Dollars and Other Good and Valuable Consideration, in hand paid, receipt whereof is hereby acknowledged, Convey and Warrant To

Dean Byrne, grantee(s),

whose address is: PO BOX 3227
Cheyenne WY 82003 of **Laramie** County
 and State of **WY**, the following described real estate, situate in **Laramie** County and State of **Wyoming**,
 to wit:

Lot 3, Energy Park One, according to the official plat filed for record on January 20, 2012 in Book 9, Page 173, Records of Laramie County, Wyoming.

Subject to all covenants, restrictions, reservations, easements, conditions and rights appearing of record.

Hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State of Wyoming.

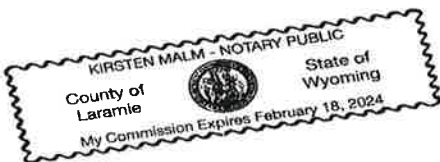
Witness my/our hand(s) this 24 day of September, 2021.

Clear Creek Land Company, LLC , a Wyoming
 limited liability company

By: Douglas D Samuelson
 Name: Douglas D Samuelson
 Title: Manager

State of **Wyoming**)
)ss.
 County of **Laramie**)

This instrument was acknowledged before me on this 24 day of September, 2021 by **Douglas D Samuelson**, the **Manager** of **Clear Creek Land Company LLC, a Wyoming Limited Liability Company**.



[Signature]
 Notary Public
 My commission expires: 2/18/24

**CLEARANCE FORM
FROM THE CHEYENNE PLANNING DEPARTMENT
FOR APPLICATION FOR OUTSIDE CITY WATER AND/OR SEWER
USER AGREEMENT**

The applicant has met with a representative of the City of Cheyenne Planning and Development Office to discuss the proposed project:

BYRNE ENERGY PARK

The applicant has received input from the City Planning Department concerning requirements and any special conditions relating to the application for a water and/or sewer user agreement. Said requirements or special conditions discussed are as follows:

1. _____
2. _____
3. _____
4. _____
5. _____



Signature of City of Cheyenne Planner

7/2/2021
Date:

**RETURN THIS FORM TO THE BOPU DEVELOPMENT SPECIALIST
At the City of Cheyenne Board of Public Utilities**

**APPLICATION FOR
BOARD OF PUBLIC UTILITIES
WATER, SANITARY SEWER or RE-USE WATER SERVICES
OUTSIDE THE CITY OF CHEYENNE LIMITS**

- | | |
|---|---|
| ☒ Connect to City Water | ☐ Proposed Residential |
| ☒ Connect to City Sewer | ☒ Proposed Commercial |
| ☐ Existing Residential Unit | ☐ Re - Use Water (Irrigation) |
| ☐ Existing Commercial Business | ☐ _____ |

Address or Location Description

LOT 3 BLOCK 1 ENERGY PARK ONE SITUATED IN A PORTION OF THE
NORTHEAST $\frac{1}{4}$ SECTION 33 TOWNSHIP 13 NORTH RANGE 67 WEST.

Name of Subdivision

ENERGY PARK ONE

Legal Description of Area:

LOT 3 BLOCK 1 ENERGY PARK ONE SITUATED IN A PORTION OF THE
NORTHEAST $\frac{1}{4}$ SECTION 33 TOWNSHIP 13 NORTH RANGE 67 WEST.

Map (Plat) of Area is to be attached:

Total Site Area: 128,502 Sq. Ft. or 2.95 Acres

Owner: DDV LLC

Telephone: 307-996-7579

Owner's Address: 6143 TUNDRA DR CHEYENNE WY 82007

Applicant/Agent: AVI PC

Applicant/Agent's Address: 1103 OLD TOWN LN #101 CHEYENNE WY 82009

For Proposed Developments:

It is proposed that the property will be developed for the following purposes.

DEVELOPMENT OF TOW TRUCK SERVICE CONSISTING OF ONE
6000 SF BUILDING, GRAVEL SURFACING, AND ACCESS ROAD WITH
SECURITY GATE.

If the property is developed for commercial or industrial use, please describe in detail any chemicals or wastes that will be used at the property:

NOT APPLICABLE

Proposed Size(s) of the Water service connection 1 Inches.

Estimated Monthly Water Usage _____ Gallons.

Intended Uses of Water (Restrooms, Kitchen, Manufacturing?) _____.

Proposed Size(s) of the Sewer service connection 4 Inches.

Sources(s) of Sewerage Discharge (Restrooms, Kitchen, Manufacturing?) _____.

If the property is developed for commercial or industrial use, please describe in detail any chemicals or wastes that will be used at the property and or discharged to the into the sewer.

BREAKROOM / RESTROOMS

- There is an application fee of \$ 501.00 that is due with the return of this application.
- Applicant must visit with the City Planning / Development Office and return the attached Clearance Form, with this Application to Board of Public Utilities Development Specialist (Linda Gunter).

SIGNATURE OF OWNER

[Handwritten Signature]

DATE 6/29/21

PRINT NAME

DEAN BYRNE

Person(s) who should be contacted regarding the application:

AVL-BRUCE PERRYMAN

Telephone 307-637-6017

Additional Comments:

OWNER WILL SEND APPLICATION FEE CHECK DIRECTLY.

**APPLICATION SHOULD BE RETURNED TO
LINDA GUNTER
PO BOX 1469
2416 SNYDER AVENUE
CHEYENNE, WY 82003
307-637-6497**

BOARD OF PUBLIC UTILITIES
CITY OF CHEYENNE, WYOMING
****SUMMARY OF BOARD MEETING****
Tuesday, February 24, 2022
PAGE 1

The Board of Public Utilities of the City of Cheyenne, Wyoming assembled this day at 3:00 p.m. in the 1st Floor Conference Room of the Timothy E. Wilson Board of Public Utilities' Administration/Engineering Building, 2416 Snyder Avenue, Cheyenne, Wyoming.

Present via In-Person/Electronic Conference were:

Mary Guthrie, President	Elizabeth Lance, Board Attorney
John Edwards, Member	Bryce Dorr, Capital Projects Supervisor
Keith Zabka, Member	Lynn Butts, Accounting Supervisor
Allan Cunningham, Member	Sarah Bargsten, Water Conservation Specialist
Brad Brooks, Director	Jason Land, Safety & Security Officer
Matt Buelow, Water Reclamation Manager	Erin Lamb, Administrative/Public Affairs
Doug Calhoun, Operations & Maintenance Manager	Pete Laybourn, Cheyenne City Council Member
Frank Strong, Eng.& Water Resources Manager	Bradley Bowen - Public Attendee
Clint Bassett, Water Treatment Manager	

The Board approved by consent agenda:

- The minutes of the Regular Board Meeting held January 18, 2022.
- **Outside User Water and Sewer Services Agreement with Dean Byrne, Lot 3, Energy Park One, subject to review and approval by the Governing Body of the City of Cheyenne.**

The Board approved the financial statements for month-end January 31, 2022 as presented. The Board approved the vouchers for payment.

The Board approved release of retainage to Mechanical Systems Inc. in the amount of \$44,989.94 for Schedule 2 of the 2020 Sewer Rehabilitation Project, subject to the successful completion of W.S. 16-6-116 advertisement period.

The Board approved to amend the chemical supplier contract with DPC Industries, Inc. to increase the rate for chlorine to \$0.5885 per pound.

The Board approved reimbursement in the amount of \$22,437.77 to WJE, LLC for the oversize water main constructed in the Saddle Ridge Subdivision.

The Board approved partial release of retainage to RN Civil Construction on the amount of \$68,023.25 for the Dry Creek Water Reclamation Facility Dewatering Improvements Project, subject to the successful completion of W.S. 16-6-116 advertisement period.

The Board approved to award the FY2021 Water Projects to Aztec Construction in the amount of \$2,479,633.30.

The Board approved the agreement with McGee, Hearne & Paiz LLP to continue to provide financial and compliance auditing for the fiscal year ending June 30, 2022 and authorize the Director to sign the Professional Services Agreement. Subject to Attorney and Governing Body Approval.

The Board meeting adjourned at approximately 4:00 p.m.